

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201501145	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/12/2015 11:41 PM	Location of Incident: Beach 44th Street and Beach Channel Drive; 101st Precinct stationhouse	18 Mo. SOL 8/12/2016	Precinct: 101		
Date/Time CV Reported Thu, 02/12/2015 11:41 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/18/2015 1:09 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mccarthy	19917	950855	101 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Brian Caltabiano	00000	934566	101 PCT
2. LT Caron Adesso	00000	917209	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Mccarthy	Discourtesy: On Beach 44th Street in Queens, PO Michael McCarthy gestured rudely toward § 87(2)(b)	A . Unsubstantiated
B . POM Michael Mccarthy	Discourtesy: At the 101st Precinct Stationhouse, PO Michael McCarthy spoke rudely to § 87(2)(b)	B . Substantiated
C . POM Michael Mccarthy	Abuse: At the 101st Precinct Stationhouse, PO Michael McCarthy threatened § 87(2)(b) with the use of force.	C . Substantiated
D . An officer	Force: At the 101st Precinct Stationhouse, an officer used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Discourtesy: At the 101st Precinct Stationhouse, an officer spoke rudely to § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Discourtesy: At the 101st Precinct Stationhouse, an officer acted rudely toward § 87(2)(b)	F . Officer(s) Unidentified

Case Summary

On February 12, 2015, § 87(2)(b) filed the following complaint with IAB. The complaint generated original log number 15-3856, and was received at the CCRB on February 18, 2015. On February 12, 2015, at approximately 11:00 p.m., § 87(2)(b) parked at the corner of Beach 44th Street and Beach Channel Drive in Queens to go to a corner store. Before exiting his vehicle, he was stopped by two officers identified via the investigation as PO Michael McCarthy and Lt Brian Caltabiano of the 101st Precinct for excessive tints. After learning that § 87(2)(b) was driving with a restricted license, PO McCarthy issued § 87(2)(b) a summons for § 87(2)(b). As the officers returned to their RMP, PO McCarthy blew § 87(2)(b) a kiss (**Allegation A**).

§ 87(2)(b) felt mistreated and did not understand why he was issued a summons for a § 87(2)(b) when he had been told he was pulled over for illegal tints. He proceeded to the 101st Precinct Stationhouse to address these concerns, and arrived there at approximately 11:30 p.m. While § 87(2)(b) was speaking with an officer at the stationhouse, PO McCarthy entered the stationhouse and approached § 87(2)(b). PO McCarthy told § 87(2)(b) “Pussy, why don’t you just take it up in court. I should punch you right in your face,” (**Allegations B and C**). PO1 then grabbed § 87(2)(b) by his waist and swung him around through one of the two entrance doors (**Allegation D**). § 87(2)(b) dropped his summons and license and asked PO1 if he could pick the documents up. PO1 responded, “No. Get the fuck out of here,” (**Allegation E**). He then pushed § 87(2)(b) through the second set of doors and kicked his license and summons through the doorway (**Allegation F**). § 87(2)(b) summons blew away in the wind. A referral was made to the Chief of Department in regards to the summons dispute.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b)
- As of March 24, 2015, § 87(2)(b) had not filed a Notice of Claim with the City of New York with regard to this incident (Board review 04).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board review 01).
 - PO McCarthy has been a member of the NYPD for three years, has had five previous CCRB allegations involving three cases with no substantiated allegations. § 87(4-b) § 87(2)(g)
- Two of the previous allegations were allegations of force (Board review 02).

Findings and Recommendations

Allegation Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Explanation of Subject Officer Identification

The altercation between § 87(2)(b) and officers at the 101st Precinct Stationhouse took place at approximately 11:30 p.m., as the tour 3 officers were ending their tour and the tour 1 officers were beginning theirs. § 87(2)(b) claimed that at least twenty officers were in the stationhouse during the incident. Moreover, the roll call revealed that there were over 70 officers between the two tours who could have been at the stationhouse during the incident (Board review 07; 08).

PO McCarthy, Lt Caltabiano, and the desk officer, Lt Caron Addesso, were interviewed at the CCRB and were not able to identify PO1 or any witness officers. § 87(2)(b) described PO1 as a white officer in his late 30s, of average height and heavy stature; a description numerous officers fit. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A – On Beach 44th Street in Queens, PO Michael McCarthy gestured rudely toward § 87(2)(b)

§ 87(2)(b) provided a statement to IAB on February 12, 2015, a phone statement to the CCRB on February 23, 2015, and a sworn statement at the CCRB on March 3, 2015. His statements were generally consistent. § 87(2)(b) alleged that while he was walking toward the corner store on Beach 44th Street, PO McCarthy, who was seated in or walking toward the driver's seat of the RMP, blew a kiss at § 87(2)(b). The RMP was parked behind § 87(2)(b) vehicle on Beach 44th Street, a one way street, with both vehicles' drivers' windows facing the corner store.

PO McCarthy was interviewed at the CCRB on March 17, 2015, and denied blowing § 87(2)(b) a kiss. Lt Caltabiano was interviewed at the CCRB on March 19, 2015, and did not see PO McCarthy blow § 87(2)(b) a kiss.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B – At the 101st Precinct Stationhouse, PO Michael McCarthy spoke rudely to § 87(2)(b)

Allegation C – At the 101st Precinct Stationhouse, PO Michael McCarthy threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that at approximately 11:30 p.m., he was at the 101st Precinct Stationhouse speaking with an officer who offered to help him. As the officer began to explain to § 87(2)(b) he could dispute the summons and file a complaint, PO McCarthy entered the stationhouse and interjected, "Pussy, why don't you just take it up in court. I should punch you right in your face."

PO McCarthy claimed that upon entering the stationhouse, § 87(2)(b) who had been speaking with an unknown officer, stopped PO McCarthy and said something to him regarding the summons. PO McCarthy could not recall which officer § 87(2)(b) had been speaking with, even after reviewing the roll call and hearing § 87(2)(b) description of the officer. PO

McCarthy told § 87(2)(b) “Take it up in court.” PO McCarthy claimed that § 87(2)(b) became combative and disorderly, yet PO McCarthy was unable to provide a single example of § 87(2)(b) combative or disorderly behavior. He could not recall if § 87(2)(b) voice was raised or if he used any profanity, and could not recall any specific statements § 87(2)(b) made. PO McCarthy responded, “I’ll see you in court.” He could not recall any other statements he made to § 87(2)(b). PO McCarthy could not recall stating, “Pussy, why don’t you just take it up in court.” He denied stating, “I should punch you right in your face,” but could not recall if he threatened to use force against § 87(2)(b).

§ 87(2)(g)
When asked if § 87(2)(b) left the stationhouse before PO McCarthy, PO McCarthy responded, “I honestly could not have cared less,” and later added that he, “disregarded anything he § 87(2)(b) said and his presence in general.” When asked if PO McCarthy encountered § 87(2)(b) after going upstairs to the locker room, PO McCarthy responded, “He better not be upstairs.” PO McCarthy repeatedly described § 87(2)(b) as being “combative” and “disorderly,” and was at no point able to provide examples of this behavior.

Lt Caltabiano claimed that upon returning to the stationhouse, he immediately went to the locker room and did not see where PO McCarthy had gone. At no point after the car stop did Lt Caltabiano see § 87(2)(b). Later that night, however, an unknown officer informed Lt Caltabiano that § 87(2)(b) had come to the stationhouse to discuss the summons with PO McCarthy. Lt Caltabiano claimed that the officer provided no further information, and that when he asked PO McCarthy about the their encounter later that night or on a later date, PO McCarthy simply stated that he told § 87(2)(b) to address the summons in court.

Lt Caron Addesso was interviewed at the CCRB on April 30, 2015. Lt Addesso was working as the desk officer during the incident at the 101st Precinct Stationhouse. She stated, however, that she did not witness or hear of the incident, and would only have been able to see the incident through a monitor. She confirmed that a tour change was occurring during the time of the incident, and that at least fifteen officers were in the stationhouse.

As addressed above, there were over seventy possible officers who could have been present at the stationhouse during § 87(2)(b) encounter with officers (Board review 07; 08).

§ 87(2)(g)
It is therefore recommended, based on a preponderance of the evidence, that **Allegations B and C** be closed as **Substantiated**.

Allegation D – At the 101st Precinct Stationhouse, an officer used physical force against § 87(2)(b)

Allegation E – At the 101st Precinct Stationhouse, an officer spoke rudely to § 87(2)(b)

Allegation F – At the 101st Precinct Stationhouse, an officer acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that immediately after PO McCarthy spoke rudely to him and threatened him with the use of force, PO1 approached § 87(2)(b) from behind, grabbed his

waist, and swung him around, guiding him through a set of doors. No officer had issued § 87(2)(b) any commands prior to this, and § 87(2)(b) had not responded to PO McCarthy's comment. § 87(2)(b) dropped his summons and license, and asked PO1 if he could pick them up. PO1 responded, "No. Get the fuck out of here," and pushed § 87(2)(b) through the second set of doors out of the stationhouse, causing § 87(2)(b) to stumble down a few steps. He did not sustain any injuries. PO1 then kicked § 87(2)(b) summons and license out of the door. The summons blew away in the wind, but § 87(2)(b) managed to retrieve his license, as it was heavier than the summons and was not taken by the wind.

§ 87(2)(b) provided a statement to Det Omar Mangual of IAB on February 12, 2015, at approximately 11:41 p.m.; just minutes after the incident (Board review 03). § 87(2)(b) was outside of the 101st Precinct Stationhouse while providing the statement. Det Mangual asked § 87(2)(b) to read the information on the summons to him. § 87(2)(b) was unable to do so because he no longer had the summons. § 87(2)(b) phone and sworn statement were consistent with his statement to Det Mangual.

PO McCarthy claimed that after his brief interaction with § 87(2)(b) at the stationhouse, he immediately went upstairs to the locker room and did not see § 87(2)(b) when he returned downstairs. PO McCarthy denied witnessing any of the above-listed allegations. As mentioned earlier, Lt Caltabiano stated that he did not see § 87(2)(b) at any point after the car stop. He did not witness any of the allegations against PO1. Lt Adesso denied hearing or witnessing any verbal or physical altercation between § 87(2)(b) and officers, and added that she would not be able to see the entrance of the station house from where she was seated.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **Officer(s) Unidentified**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date